THE FORMATION OF THE ISRAELI STATE

1897-1948

Introduction

Israel, consummation of a Zionist dream and fulfillment of a religious destiny. Israel, the yearning for 2000 years of Jewish people for their ancient homeland. Zionism, the means for obtaining their dream or as stated by Abba Eban, "is nothing more-but also nothing less-than the Jewish people's sense of origin and destination in the land linked eternally with its name. It is also the instrument whereby the Jewish nation seeks an authentic fulfillment of itself.[1] On May 14, 1948, the state of Israel became reality. The following day, the Arab-Israeli war began. Since that time Israel has been the center of conflict, terrorism and world instability.

With the formation of Israel, and events occurring shortly thereafter, almost a million Palestinian Arabs became refugees deprived of their land, homes and livelihood. They claim that Palestine, Israel, is their country and that they have been unjustly treated, not just by the Jews, but by the United Nations and the International community. To bring attention to their plight they have committed acts of international terrorism and, more recently, a campaign of civil disobedience. Such actions have drawn world attention and, at times, world condemnation, but little has been done to redress their grievances.

Have injustices been done? Whose land is Palestine, and how was Israel revived after 2000 years of nonexistence? The purpose of this paper is to understand and elucidate how this controversy arose.

[1] Abba Eban, "Zionism and the U.N.," New York Times, Nov 3, 1975.

Israel, Reasons for its Formation

To understand the reasons for the formation of Israel one must see it in a historical perspective dating back to the origins of Judaism.

Judaism is a form of religion that began in Egypt some 3500 years ago. Palestine, or Israel, is the land of milk and honey promised to the Israelites by Yahweh, God, through Moses around 1250 B.C. Over the next century the Semitic tribes left Egypt for the "Promised Land" in Canaan. Slowly they absorbed or dissipated the original inhabitants through immigration, occupation and open conquest. By 1010 B.C., the Hebrew Kingdom of David was created but soon after was divided into two kingdoms, Israel and Judah. In 721 B.C., the Kingdom of Israel was conquered by the Assyrians, and in 585 B.C., the Kingdom of Judah by the Babylonians. The majority of the Hebrews were displaced during these conquests, but by 150 B.C., they had returned and regained control of most of the territory. In 63 B.C., the area came under Roman domination, and following several revolts against the Romans, Jerusalem was destroyed and the Jews dispersed. They fled to Babylonia, the Mediterranean, North Africa, and Spain and from there to the rest of Europe.

Over the next two thousand years, Jews repeatedly suffered isolation and persecution. Christians in the Middle Ages blamed them for their savior's death, and as Christian power advanced, "hostility of Christians to Jews intensified and occasionally broke in violence."[2] In England, France and the Rhineland because of their seclusion, both religiously and culturally, Jews were viewed with suspicion and curiosity. During the crusades of the 11th century, they were branded as "infidels" and in Germany suffered wholesale massacre, which over the next two centuries spread throughout the rest of Europe. Many took refuge in Turkey, Poland, Syria and some in Palestine. Those who remained in Germany, Austria and Italy were forced into segregated quarters or ghettos and banned from many occupations. Where the Catholic Church was supreme they had to wear a "Jew Badge," a colored patch of cloth sewn onto their clothing which became a mark of shame.[3] Around many of the ghettos, high walls were built and the gates locked at night. Those who dared to ignore this nocturnal prison risked a fine or even death. In

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[2] David S. Noss and John B. Noss, Man's Religions, (New York: Macmillan Publishing Co., 7th Ed., 1984) p. 403.

[3] ibid., p. 403

the 17th century, the Russian and Polish Cossacks rose up against their feudal lords and went on to slaughter 500,000 Jews.

The American and French resolutions brought new freedom and self-realization to the Jews. In France they were given full rights of citizenship, and wherever Napoleon went, he systematically abolished the Jewish ghettos. Democracy, and the idea that all men are created equal, allowed the Jews to develop and take full advantage of teaching institutions, many becoming doctors, lawyers and politicians.[4] In essence becoming active members of society. However, with Jewish success and prominence came a return of anti-Semitism across Europe, culminating in the massacre of some 6,000,000 Jews in German concentration camps during the 2nd World War.

As a religious group or community, few have suffered such persecution. Common suffering is a powerful bond and, as such, pulled the Jews together even tighter.

During the late 19th century and early 20th century, some Jews felt that only by creating their own state could permanent security be obtained. According to many, this meant a return to their ancient homeland in Palestine. The seeking of security, acceptance and self-fulfillment propelled them forward. The search for a nation had begun.

The Formation of Israel

The formation of Israel is based on three steps, the Balfour Agreement, the League of Nations' Mandate over Palestine and the United Nations' partitioning of Palestine into two separate states. To understand each step properly, the development and forces that shaped each will be examined.

The basic premise behind each of these steps is that Jews, historically and otherwise, had a right to a homeland in Palestine. To the Zionists, there can be no question that historically and religiously their claims were legitimate. Although a religious group may believe it has a divine right to a land, little in the way of actual legitimacy can be given to those beliefs. The religious claims to Palestine will therefore not be dealt with, other than to say they should not, and cannot, be used in determining ownership of Palestine.

Historically, Hebrew domination of Palestine was transient, involving no more than 700 of the last 3500 years. From the 1st century to the 20th century, few Jews remained in Palestine, and as recently as 1800, there were only 8,000 Jews in all of Palestine.[5] Considering that for almost 2,000 years their association had been one of religious affiliation, it would appear that their claim of historical right to Palestine had questionable validity. Certainly in International law such an argument would not even be considered, especially in claiming proprietorship of a country. Arab Palestinians, on the other hand, had lived in Palestine for most of the past 2,000 years and certainly, up to 1947, represented the majority of the population.

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[4] ibid., p. 407

[5] Henry Cattan, Palestine and International Law, (London: Longman, 1973) p. 5.

During a debate in 1920 in the British House of Lords, Lord Sydenham gave a clear overview of this problem. He stated: "I sympathize entirely with the wishes of the Jews to have a National Home, but I say that this National Home must not be given if it cannot be given without entailing gross injustice upon other people. Palestine is not the original home of the Jews. It was acquired by them after ruthless conquest, and they have never occupied the whole of it, which they now openly demand. They have no more valid claim to Palestine than the descendants of the ancient Romans have to this country…

If we are going to admit claims based on conquests thousands of years ago, the whole world will have to be turned upside down… The only real claim to Palestine surely is that of the present inhabitants, some of whom descend from the pre-Jewish conquest population, and others from Israelites converted to Islam."[6]

Historically, then, Jewish claims of a right to Palestine, prior to 1917, have little substance. Yet, these claims were one of the major arguments for a Jewish homeland in Palestine. If these claims are of questionable validity and legitimacy, then how and why was a homeland in Palestine promised to them?

The Balfour Declaration

Late in the 19th century, the Zionist movement was formed and held its first congress in 1897. The major aim of Zionism was to create a Jewish nation. Attempts were made, by the movement, to persuade Turkey to make Palestine a Jewish colony, but after several unsuccessful attempts Theodur Herzl, a Zionist leader, turned to Britain. Various proposals were made to the British, including one for a colony in Kenya, and another involving land in Cyprus and the Sinai. Both were eventually turned down, Kenya because the Zionists appeared to want sovereignty, and the latter due to probable Egyptian objections and the observed interests of the Zionists for eventual control of Palestine.[7]

Over the next 10 years, the Zionist movement continued to grow with several thousand Jews emigrating from Eastern Europe and Russia to Palestine. Prior to World War I, the World Zionist Organization was situated in Berlin, and even during the war,

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[6] Lord Sydenham, House of Lords, "Hansard's Reports," p. 121.

[7] Frank Hardie and Irwin Herrman, Britain and Zion, (Belfast: Blackstaff Press, 1980) pp. 1-19.

had strong backing by the German Jews with support from the German government.[8] In World War I, German Zionists attempted to persuade Russian Jews to support Germany and this may have been partially responsible for the Russian's brutal evacuation of Russian Jews from along the border.[9]

As the Allied war effort began to take a turn for the worse, they became increasingly desperate for American involvement in the war. Developed during this period, and well propagated by the Zionist, Dr. Chaim Weissman, was the idea that the British should offer the Jews a homeland in Palestine, and in doing so have the following beneficial effects:

1. To ensure British control over Palestine after the war rather than French.
2. To distract Jewish attention and displeasure from Britain's ally, Russia, for her poor treatment of Jews.
3. To gain increasing support from American Jews for the Allies, thereby applying significant pressure on the U.S. government to increase its commitment to the war effort.[10]

Weissman was successful in his endeavors, and in 1917, the British government released the "Balfour Declaration," which stated:

"His Majesty's Government views with favor the establishment in Palestine of a national home for the Jewish people, and will use its best endeavors to facilitate the achievement of this object, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country.[11]

This was distributed in millions of leaflets by the British government in communities around the world that had any significant Jewish population.[12]

To many Zionists, this represented a homeland in Palestine; to others such as Weissman, it was the 1st step towards a Jewish state of Palestine.[13]

Assessment of the Balfour Declaration

The Balfour Declaration was an opportunistic agreement between two parties based on self-interest. Its main fault is that it neglected the consideration, consent and

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[8] ibid, p. 71.

[9] Jon Kimche, The Unromantics, (Great Britain: C. Tinling & Co., Ltd., 1968) Chapter 2.

[10] ibid, pp. 42-45, 51.

[11] ibid, p. 42.

[12] ibid, p. 44.

[13] ibid, p. 67.

aspirations of the actual inhabitants of Palestine. It was also contrary to the pledges and promises previously made to the Arabs by the British. Furthermore, Britain had no sovereign rights over Palestine, no proprietary interest and no authority to dispose of the land.[14]

The Balfour Declaration is often cited by Zionists as recognition of their right, and as a promissory note, to create a Jewish state in, or of, Palestine. At best, it can be seen as a British intention to allow a Jewish Homeland in Palestine, not of Palestine, and as previously noted had questionable validity. Legally right or not, according to the rules of international law, it did provide the Zionists with a major stepping stone: apparent validity of their right to Palestine.

The League of Nations Mandate

Following World War I it was felt that war settlements should not include annexation of other nations, but should be based on the principle of self-determination.[15] Through the League of Nations, a mandatory system was developed and several territories subjected to international mandates. On September 23, 1922, the League of Nations appointed Britain as the mandatory power of Palestine. The basis of the mandate was to: "be responsible for…the development of self-governing institutions; give the Mandatory, "full power of legislation and administration;" and "the establishment of a Jewish National Home…while ensuring the rights of other sections of the population are not prejudiced, shall facilitate Jewish immigration under suitable conditions…"[16]

From 1919 to 1939, the Jewish population in Palestine went from 55,000 to 450,000.[17] As could be expected, this created increasing tensions between the Arabs and Jews.

The partiality of Britain to Zionist goals was clear in Arab eyes. Such promises as making a Jewish home in Palestine, and allowing thousands of Jewish immigrants into Palestine, could hardly be seen otherwise. Later, decisions such as making Hebrew the official language of the state, and the fabric of the government being pro-Zionist, many British Zionist Jews holding key positions, only increased Arab concerns and distrust of Britain as the Mandatory power.[18] During this period, several Arab riots occurred, and committee after committee investigating the causes came to the same conclusions.

1. "Arab disappointment at the non-fulfillment of the promises of independence which had been given to them during the First World War; and
2. Arab belief that the Balfour Declaration implied a denial of the right or self-determination and their fear that the establishment of 'a national home for the

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[14] Cattan, op.cit., p. 90.

[15] ibid, p. 25.

[16] ibid, pp. 25-28.

[17] Hardie, op. cit., p 90.

[18] Sami Hadawi, Bitter Harvest, (New York: The New World Press, 1967), pp. 56-58.

Jews' in Palestine will lead to their ultimate dispossession of their homes and homeland."[19]

Due to increasing Arab pressure and the violence in Palestine, the British government reviewed the situation and released the White Paper in 1939 with the following decisions as summarized by Hadawi:

1. "That the Jewish National Home as envisaged in the Balfour Declaration and in previous statements of British policy had been established;
2. That to develop it further against Arab wishes would be a violation of Britain's undertakings to the Arabs, and that such a policy could only be carried out by the use of unjustifiable force;
3. That therefore, after the admission of a final quota of 75,000 more Jewish immigrants over a period of five years, Jewish immigration should stop;
4. That during this period of five years, a restriction should be placed on the acquisition of further land in Palestine by the Jews; and
5. That at the end of the period of five years, self-governing institutions should be set up in the country."[20]

Zionists condemned and rejected the British decision and violence followed. However, with the outbreak of the Second World War, the Arabs and Jews ceased actions of violence and supported the British in their war effort.

Assessment of the Mandate

The purpose of the mandate was to develop a nation to the point where it could govern itself. Its main concerns were to be the interests of its people, in other words, for "the promotion of political, economic, social and educational advancement of the inhabitants."[21] No one could argue that the British Mandate over Palestine was in the interests of the Palestinians. It was in the interests of foreign Jews, whose legitimacy to Palestine was questionable. The basis for the Palestinian Mandate was an opportunistic agreement, the Balfour Declaration. When one considers that the direction for the mandate was drawn up by Britain in consultation with Zionist representatives, with no Arab input, how could it be otherwise.[22] Arab reaction could not have been anything but hostile.

Jewish Terrorism

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[19] ibid, p. 60.

[20] ibid, p. 64.

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[22] H. Temperlay, History of the Peace Conference of Paris, Vol 6, (Hodder and Staughton) p. 124.

Immediately following the War, the Palestinian Jewish Agency presented the British government with the following demands:

1. "That an immediate decision be announced to establish Palestine 'undivided and undiminished' as a Jewish state;
2. That the Jewish Agency be invested with the control of Jewish immigration into Palestine;
3. That an international loan be raised to finance the immigration of the 'first million' Jews to Palestine;
4. That reparations in kind from Germany be granted to the Jewish people for the 'rebuilding' of Palestine;
5. That free international facilities be provided for the exit and transit of all Jews who wish to settle in Palestine."[23]

To this end, prior to the end of the war, several Jewish terrorist organizations were formed.[24] Their objective was the creation of a Jewish state and the elimination of British control in Palestine. Their actions consisted of blowing up government buildings and railway tracks, and the assassination of British personnel. This included the assassination of the British Secretary of State, Lord Moyne, in Cairo, and the blowing up of the King David Hotel which housed government offices and military headquarters, killing almost 100.[25] The British were powerless to rectify the situation because of general support for the terrorists by the Jewish community.[26] An assessment of the situation was given by the British government to the United Nations Special Committee on Palestine (UNSCOP) in July of 1947, and best summarizes the situation:

> "The right of any community to use force as a means of gaining its political ends is not admitted in the British Commonwealth. Since the beginning of 1945 the Jews have implicitly claimed this right and have supported by an organized campaign of lawlessness, murder and sabotage their contention that, whatever other interests might be concerned, nothing should be allowed to stand in the way of a Jewish State and free Jewish immigration into Palestine."[27]

These actions stemmed from the White Paper of 1939, which restricted further Jewish immigration into Palestine. This effectively denied Jews an eventual majority in Palestine, and therefore the control of Palestine as well. To many Jews both the mandate and the Balfour Declaration guaranteed them all of Palestine, and anything that prevented attaining that goal was unacceptable.

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[23] Hadawi, op. cit, p. 66.

[24] ibid.

[25] op. cit., pp. 67-72.

[26] op. cit., pp. 72-74.

[27] UNSCOP Report, Vol. 1, Chapter II, C. Palestine Under the Mandate, p. 118, July 1947.

In February of 1947, at the height of terrorist acts and sabotage, the British attempted to negotiate a settlement between the two parties. It was rejected by the Arabs on the basis it would eventually lead to the partitioning of Palestine, and because they felt further Jewish immigration was unacceptable. The Jews did likewise, rejecting the idea of being a minority in a unitary state, and under the partition plan demanded more territory.[28] The British, unable to mediate a settlement, referred the matter to the United Nations.

The United Nations' Partition Plan

The United Nations, after examining the various issues, recommended the termination of the mandate, partition of Palestine into two independent states with economic union, and an international regime for the City of Jerusalem.[29] Britain washed its hands of the affair and stated that it would not be responsible for enforcing a settlement that was not acceptable to both parties, and that the U.N. would have to enforce its own decision.[30] The Arab response was to question the competency of the U.N. to make such a decision. They requested that the matter be referred to the international courts for an advisory opinion, and they warned that unless this were done, they would not honour the recommendations.[31] Only the Jewish Agency for Palestine accepted the proposals, stating that Palestine had made no contribution to modern civilization, and therefore was not a historical entity. The agency also claimed that Palestine owed its identity to the Jews, being the originators of Judaism and Christianity, and that once more, it was resuming its identity and role in history. It agreed to accept the proposal as long as Jewish immigration could be immediately reinstated. It also "reserved the right to deal later with other territorial modifications."[32]

On November 29, 1947, the U.N. General Assembly voted for the partition of Palestine. On May 14, 1948, the British pulled out of Palestine, ending the mandate, and chaos erupted. The U.N., though responsible for the partition of Palestine, had no means to enforce its decision.

Assessment of the Partitioning of Palestine

The decision to partition Palestine would seem to be within the power of the U.N. Whether its decision was correct and valid is another point. If the Balfour Declaration, and subsequently the Mandate, are of questionable validity, and the partitioning of Palestine a result of these previous actions, does illegitimacy give rise to legitimacy?

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[28] T.G. Fraser, The Middle East, 1914-1979, (New York: St. Martin's Press, 1980) p. 38.

[29] ibid, p. 54.

[30] ibid, p. 57-58.

[31] ibid, p. 59.

[32] ibid, pp. 51-53.

Furthermore, when it became clear that the resolution would not pass, the United States used immense political pressure to force several countries to vote for the resolution. The evidence for this is well documented. James Forrestal, then U.S. Secretary of Defense, has stated:

> "I thought that the methods that had been used by people outside of the executive branch of the government to bring coercion and duress on other nations in the General Assembly bordered closely onto scandal."[33] Or as stated by Summer Welles, former U.S. Secretary of State: "In the light of later events it is important that there be no misunderstanding of the position that the United States assumed at this juncture. By direct order of the White House every form of pressure, direct and indirect, was brought to bear by American officials upon those countries outside the Moslem world that were known to be either uncertain or opposed to partition. Representatives or intermediaries were employed by the White House to make sure that the necessary majority would at least be secured."[34]

In light of this, several countries questioned the validity of the resolution and the Arab states rejected it outright.[35]

In 1946, the population of Palestine consisted of 1,203,000 Moslems, 145,000 Christians, and 608,000 Jews, with ten percent of the latter being original inhabitants.[36] The Jews owned six percent of the land, the Arabs forty-eight percent and the rest was public domain.[37] The Partition Plan gave Israel fifty-seven percent, and the Arabs forty-three percent of Palestine. The partition was anything but equitable.[38]

In response to the U.N. decision, the Arab states requested that the matter be referred to the International Court of Justice for an advisory opinion on its legality. All motions to do so were voted down by the General Assembly (see appendices for Arab resolutions concerning this matter).[39] The Arab states also questioned the competency of the U.N. to enforce its plan on Palestine, and indeed, that question foreshadowed events.

The Partitioning of Palestine

Immediately prior to and following partition, open violence occurred between the Jews and Arabs. The Jewish forces were especially fierce, using psychological warfare to create panic amongst the Arab civilians. In Deir Yassin, groups led by Menachen Begin,

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[33] Millis, The Forrestal Diaries, (New York: Viking Press, 1951) p. 363.

[34] Welles, Sumner, We Need Not Fail, (Boston: Houghton Mifflin, 1948) pp. 63, 80.

[35] Cattan, op. cit., pp. 53-54.

[36] ibid, pp. 54-55.

[37] ibid.

[38] ibid.

[39] ibid, p. 102

the Irgun, and the present Prime Minister of Israel, Yitzhak Shamir with the LEHI, massacred a whole village of 300 Arabs "without military reason or provocation of any kind."[40] The drastic effects this had on the Arab population has been well documented by Jacques de Reyneir, the Chief Delegate of the International Red Cross in Palestine, stating that:

> "This action had immense repercussions. The whole press, both Jewish and Arab, strongly condemned this manner of acting, but insisted all the same upon the need of being watchful. Thereupon terror seized the Arabs and gave rise to movements of panic which were wholly out of proportion with the real danger. The exodus began and became nearly general."[41]

Using terror and eventually force, the Jewish forces expelled the vast majority of Arabs from their towns, villages and land. Again, this has been well documented by Kirk.

> "The Jewish combatants there and elsewhere made skilful use of psychological warfare to break their opponents' morale, and the effect upon the civilians was only what was to be expected. At a later stage, the Israeli armed forces did not confine their pressure on the Arab population to playing upon their fears. They forcibly expelled them…."[42]

John Davis, Commissioner-General of the U.N. Relief and Works Agency for Palestine Refugees, has stated: "the extent to which the refugees were savagely driven out by the Israelis as part of a deliberate masterplan has been insufficiently recognized."[43] In commenting on the means used, he cited "expert psychological warfare to ruthless expulsion by force."[44]

As a result, the vast majority of Arabs were homeless, many seeking refuge in neighbouring Arab countries. Israel had, at that point, expanded its borders to include 77% of the original Palestinian territory and adamantly refused to recognize the borders set out by the UN resolution that created the state of Israel.

At this point, a U.N. mediator, Count Bernadotte, was appointed to resolve the Palestinian crises. Count Bernadotte recommended that at the earliest possible date, the Arab refugees should be allowed to return to their homes, and that those who decided not to should receive "adequate compensation."[45] These proposals were later accepted and

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[40] ibid.

[41] ibid.

[42] ibid, p. 103

[43] ibid.

[44] ibid.

[45] ibid, p. 104

passed by the General Assembly, but not before the assassination of Count Bernadotte by Jewish terrorists in Jerusalem.[46]

Israel adamantly refused to allow Arab refugees to return, ignoring both the U.N. resolution and their original agreement which granted the formation of Israel.[47] The latter also guaranteed the civil rights of Arabs in Israel. Only after the United States threatened to reconsider its support of Israel did they offer to allow 100,000 refugees, approximately ten percent, to return. But, they reserved the right to decide where the refugees could resettle, and only as part of a total peace plan.[48] This was considered unsatisfactory by the U.N. Conciliation Committee.[49] In the meantime, the Israel government enacted the "Law of Return" enabling Jews worldwide to immigrate to Israel.[50] The former homes of Palestinians becoming their new homes.[51] The Israelis also destroyed over 300 Arab villages, leaving many Arabs no possibility of returning.[52]

Again U.N. mediation was attempted, but Israel refused to recognize the U.N. partition lines and based its borders on the armistice lines, even demanding further territory in West Galilee and the Gaza strip, essentially wanting eighty-five percent of Palestine.[53] The argument was rejected by the U.N. on the basis of the original agreement and international law.

Misconceptions

To many, the Arab declaration of war by Egypt, Transjordan, Syria, Iraq and Lebanon was unjustifiable and one-sided. Their loss has been attributed to Israel's determination to survive. Both are fallacies. Several months prior to the Arab-Israeli war, Jewish terrorism and expulsion of Arabs from their homes, including territory allotted Arabs under the Partition Plan, had already displaced hundreds of thousands, with many fleeing to neighbouring Arab countries.[54] To many, such as Menacham Begin, leader of the Irgun terrorist group, this indeed was a great achievement.[55] With the U.N. failing to provide any form of control over Jewish atrocities, the Arab states felt

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[46] Fraser, op. cit., p. 65.

[47] Cattan, op. cit., pp. 104-107.

[48] ibid, p. 104.

[49] ibid.

[50] ibid, p. 105.

[51] ibid.

[52] ibid.

[53] ibid, p. 109

[54] Hadawi, op. cit., p. 108

[55] ibid, p. 107

compelled to directly intervene on behalf of the Palestinians.[56] They entered the war outnumbered by almost two to one and with inferior armaments (based on CIA reports at the time).[57] When the war was over, Israel had significantly expanded its borders and had no intention of giving up what it had gained.

Tragedy and Injustice

In the end a great tragedy and injustice had occurred. The vast majority of Palestinians had fled from their homes, many with just the shirts on their backs.[58] They left behind their homes, businesses, farms, property and even household goods. This was followed by an orgy of looting by Israelis, and also the destruction of many Arab towns.[59] Many Arabs thought they would be away for a short time, until things settled down; however, they were mistaken. Israel since that time has refused to allow Palestinian Arabs to return to their homes and has systematically passed laws to deprive Arabs of their land, including those who temporarily left them during the conflict (please see appendix III for a review of these laws). The U.N. has repeatedly called on Israel to return these lands and property, but all demands have been ignored.[60] It is ironic that such acts were considered a war crime during the Nuremberg Trials of German Nazis.[61]

Conclusion

Prior to 1917, Zionist claims to Palestine were based on religious affiliation. Historically, Jewish domination of the region was temporary and ended almost 2,000 years earlier. Those who claim Jewish historical right to Palestine, had little basis for their premise. The first step towards Zionist's goals was the Balfour Declaration. Though it may have been invalid, it gave the appearance of legitimacy to Zionist plans, a Jewish nation of Palestine. The British, in essence, gave away a nation that it had no sovereignty over. The rights and the wishes of its inhabitants ignored, and treated as insignificant. After World War I, self-determination was to be the goal of society. In this spirit, the League of Nations created Mandates to assist in the development of certain nations until they were viable entities. The main interests of the mandate were to be those of its inhabitants. In Palestine such was not the case, for it allowed the gradual takeover of Palestine by foreign Jews. The British, when faced with increasing violence and repercussions for assisting in the creation of a Jewish state, aborted their

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[56] ibid, p. 109

[57] Fraser, op. cit., pp. 70-72.

[58] Cattan, op. cit., p. 112.

[59] ibid.

[60] ibid, pp. 116-118.

[61] ibid, p. 118

responsibility, leaving chaos in their wake. The inheritor of this chaos was the U.N. Acting as a mediator between the two parties, it decided to divide Palestine into two states, and guaranteed the civil rights of Jews and Arabs in both countries. The Arabs rejected the plan. The Jews rejoiced and set out on a campaign to eliminate the Arabs from Palestine.

Israel now controls most of Palestine, and the majority of Palestinian Arabs live in refugee camps or have been displaced to other countries. If that was the Israeli objective, then they have more or less succeeded. For the Palestinians their worst fears have been realized. They have no land, no country and no home. The lofty securities promised to them in the Balfour Declaration, the League of Nations" Mandate and the U.N. Partition Plan remain neglected and forgotten.

APPENDIX I

Arab Draft Resolution to the Ad Hoc Committee on the Palestinian

Question

"The General Assembly,

Considering that the Palestine question raises certain legal issues connected, inter alia, with the inherent right of the indigenous population of Palestine to their country and to determine its future, the pledges and assurances given to the Arabs in the First World War regarding the independence of Arab countries, including Palestine, the validity and scope of the Balfour Declaration and the Mandate, the effect on the Mandate of the dissolution of the League of Nations and the declaration by the Mandatory Power of its intention to withdraw from Palestine,

Considering that the Palestine question also raises other legal issues connected with the competence of the United Nations to recommend any solution contrary to the Covenant of the League of Nations or the Charter of the United Nations, or to the wishes of the majority of the people of Palestine,

Considering that doubts have been expressed by several Member States concerning the legality under the Charter of any actions by the United Nations, or by any Member State or group of Member States, to enforce any proposal which is contrary to the wishes or is made without the consent of the majority of the inhabitants of Palestine,

Considering that these questions involve legal tissues which so far have not been pronounced by any impartial or competent tribunal, and that it is essential that such questions be authoritatively determined before the United Nations can recommend a solution of the Palestine question in conformity with the principles of justice and international law,

Resolves to request the International Court of Justice to give an advisory opinion under Article 96 of the Charter and Chapter IV of the Statute of the Court on the following questions:

(a) Whether the indigenous population of Palestine has not an inherent right to Palestine and to determine its future constitution and government;

(b) Whether the pledges and assurances given by Great Britain to the Arabs during the First World War (including the Anglo-French Declaration of 1918) concerning

the independence and future of Arab countries at the end of the war did not include Palestine;

(c) Whether the Balfour Declaration, which was made without the knowledge or consent of the indigenous population of Palestine, was valid and binding on the people of Palestine, or consistent with the earlier and subsequent pledges and assurances given to the Arabs;

(d) Whether the provisions of the Mandate for Palestine regarding the establishment of a Jewish National Home in Palestine are in conformity or consistent with the objectives and provisions of the Covenant of the League of Nations (in particular Article 22), or are compatible with the provisions of the Mandate relating to the development of self-government and the preservation of the rights and position of the Arabs of Palestine;

(e) Whether the legal basis of the Mandate for Palestine has not disappeared with the dissolution of the League of Nations, and whether it is not the duty of the Mandatory Power to hand over power and administration to a government of Palestine representing the rightful people of Palestine;

(f) Whether a plan to partition Palestine without the consent of the majority of its people is consistent with the objectives of the Covenant of the League of Nations, and with the provisions of the Mandate for Palestine;

(g) Whether the United Nations is competent to recommend either of the two plans and recommendations of the majority or minority of the United Nations Special Committee on Palestine, or any other solution involving partition of the territory of Palestine, or a permanent trusteeship over any city or part of Palestine, without the consent of the majority of the people of Palestine;

(h) Whether the United Nations, or any of its Member States, is competent to enforce or recommend the enforcement of any proposal concerning the constitution and future government of Palestine, in particular any plan of partition which is contrary to the wishes, or adopted without the consent, of the inhabitants of Palestine;

Instructs the Secretary-General to transmit this resolution to the International Court of Justice, accompanied by all documents likely to throw light upon the questions under reference."[1]

[1] Cattan, op.cit., pp. 47-49

APPENDIX II
Validity of the Partition Plan

Summarized below are the arguments, presented by Cattan, against the U.N. Partition Plan and its validity:

1. Arguments questioning the validity of the Balfour Declaration and the Mandate over Palestine are again applicable.

2. In 1946, one of the League of Nations last resolutions was "on the termination of the Leagues existence, its functions with respect to the mandated territories will come to an end." The power to oversee the mandates, was never transferred to the U.N. nor was it included in the U.N. charter. The U.N. therefore had no right to partition Palestine.

3. The resolution was an encroachment upon the sovereignty of the people of Palestine and therefore contrary to the principle of law and in violation of the U.N. Charter. Article 2(7) states that nothing contained therein shall authorize the U.N. to intervene in matters that are essentially within the domestic jurisdiction of any state.

4. It was against Article 3 of the Mandate, that, "no Palestine territory shall be ceded or leased to, or in any way placed under the control of, the government of any foreign power"

5. It was contrary to Article 28 of the Mandate, that at the termination of the Mandate the territory of Palestine would be passed to the control of "the government of Palestine."[1]

[1] See Chapter III, Section 3 of Cattan for more detail.

APPENDIX III
Israel's Laws on Arab Property

Following the mass exodus and displacement of Palestinian Arabs during the 1948 Arab-Israeli war, almost 90 percent, one million, of the Arabs became homeless many with just the shirt on their back. Israel refused to allow them to return to their homes and they became refugees. They had lost their homes, country and their livelihood, all of which were guaranteed under the Partition Plan. Israel since then, has systematically confiscated Arab property through local legislation, ignoring all U.N. resolutions for their return. A list of these laws is provided below:

1. Abandoned Areas Ordinance, 1948
   Any abandoned property or land in the occupied territory could be subjected to expropriation or confiscation pending future regulations. This did not take into account the reasons for abandonment, i.e., the use of terrorism and forceful expulsion by Israeli forces.

2. The Cultivation of Waste Lands Regulation, 1948
   All lands not being cultivated, or inefficiently cultivated, could be seized by the Minister of Agriculture. Since the Arab refugees were not allowed to return to their lands, this effectively confiscated all their lands.

3. Absentee Property Regulation, 1948, and Absentee Property Law, 1950
   Essentially seized all remaining refugee property and placed it under a government custodian. The latter law, allowed a government agency to buy the land at extremely low prices. This included property that was left temporarily by Arabs during the war, even though they remained in Israel.

4. The Land Acquisition Law, 1953

Previous lands that were taken over for security reasons and development purposes, from Arabs, were acquired by the government and the Arabs received a nominal amount for the land.

5. The Law of Limitation, 1958

   Owners of unregistered land had to prove "continuous undisputed possession for a period of fifteen years." (pp. 116 Cattan). Since most of the land was unregistered, and a few Arabs had official documents, the Israeli government was able to confiscate most of the land owned by the few remaining Arabs.

BIBLIOGRAPHY

1. Cattan, Henry, Palestine and International Law: The Legal Aspect of the Arab-Israeli Conflict. London: Longman Group LTD., 1973.

2. Epp, Frank, Whose Land Is Palestine?: The Middle East in Historical Perspective. Toronto: McClelland and Stewart Limited, 1972.

3. Fraser, T.G., The Middle East 1914-1979. New York: St. Martin's Press, 1980.

4. Hadawi, Sami, Bitter Harvest: Palestine between 1914-1967. New York: The World Press, 1967.

5. Hardie, Frank & Herrman, Irwin, Britain: The Fateful Entanglement. London: Blackstaff Press, 1980.

6. Herzog, Chaim, Who Stands Accused?: Israel Answers Its Critics. New York: Random House, 1978.

7. Khan, Rahmatullah, Implied Powers of the United Nations. India: Vikas Publications, 1969.

8. Kimche, Jon, The Unromantics: The Great Powers And The Balfour Declaration. London: Weidenfeld and Nicolson, 1968.

9. Mallison, Thomas & Mallison, Sally, An International Law Analysis of the Major United Nations Resolutions Concerning The Palestine Question. New York: United Nations Publication, 1979.

10. Noss, David, Noss, John, Man's Religions 7th Edition. London: Macmillan Publishing Company, 1984.

11. Peretz, D., Wilson, E., Ward, R., A Palestine Entity? Washington, D.C.: The Middle East Institute, 1970.

12. Wengler, W., Documents on the Arab Israel Conflict: The Resolutions of the United Nations Organization. Berlin: Verlag, 1979.

13. "Report Of The International Conference On The Question of Palestine." Geneva, 29 August-7 September 1983, New York: United Nations Publications, 1983.